

Building (Appeal) Regulation

(Cap. 123 sub. leg. L)

Contents

Section		Page
1.	<i>(Omitted as spent)</i>	2
2.	Interpretation	2
3.	Notice of appeal	4
4.	Statement of particulars	4
5.	Representations and documents as regards need for a preliminary hearing	6
6.	Request for further particulars	6
7.	Notification of hearing	8
8.	Issue of witness summons	8
9.	Hearing to be in public	8
10.	Withdrawal of appeal	10
11.	Consequences of failure by appellant to furnish statements, particulars, etc.	10
12.	Record of hearing and publication of decision	12
13.	Extension of time limits	12
14.	Service of notices, etc.	12

Building (Appeal) Regulation

(Cap. 123, section 38(1B))

(Enacting provision omitted—E.R. 2 of 2021)

[16 November 1994]

(Format changes—E.R. 2 of 2021)

1. *(Omitted as spent—E.R. 2 of 2021)*

2. Interpretation

In this Regulation, unless the context otherwise requires—

appellant (上訴人) means a person who has given notice of appeal;

Chairman (主席) means the chairman of the Tribunal appointed under section 48(1) of the Ordinance;

extended period (經延展的期限) means, in relation to a particular case, a period allowed under section 13;

hearing (聆訊) means the hearing of an appeal and includes a preliminary hearing;

notice of appeal (上訴通知) means a notice of appeal referred to in section 3;

preliminary hearing (初步聆訊) means a hearing held under section 49 of the Ordinance;

Secretary (秘書) means the Secretary to the Appeal Tribunal appointed under section 46 of the Ordinance;

Tribunal (審裁小組) means, in relation to a particular appeal, the tribunal appointed under section 48(1) of the Ordinance to hear and determine that appeal.

3. Notice of appeal

- (1) A notice of appeal for the purposes of section 47 of the Ordinance shall be in writing and served on the Secretary.
- (2) A notice of appeal may be served on the Secretary by sending it to him by registered or ordinary mail addressed to him at his office or facsimile transmission or serving it personally on him.
- (3) The appellant shall serve a copy of the notice of appeal on the Building Authority within the period specified in section 47 of the Ordinance for giving notice of appeal.

4. Statement of particulars

- (1) The appellant shall, within 28 days beginning on the date notice of appeal is given or, where appropriate, within the extended period, furnish to the Secretary a statement containing—
 - (a) the particulars of the decision to which the appeal relates;
 - (b) the grounds of appeal if they have not been specified in the notice of appeal;
 - (c) a detailed description of the matter to which the appeal relates;
 - (d) a description of each document the appellant intends to produce at the hearing;
 - (e) where relevant, the address and description of any property or land to which the appeal relates and a statement of the interest of the appellant in that property or land; and
 - (f) the particulars of the witnesses the appellant intends to call on his behalf at the hearing.

- (2) The appellant shall serve a copy of the statement referred to in subsection (1) on the Building Authority within the period or extended period, as may be appropriate, referred to in that subsection.

5. Representations and documents as regards need for a preliminary hearing

The Building Authority shall—

- (a) within 28 days beginning on the date of receiving a copy of a statement under section 4(2) or, where appropriate, within the extended period, furnish to the Secretary representations in writing and documents (if any) in his possession or custody, which he considers would assist the Tribunal to determine or otherwise dispose of the appeal; and
- (b) within the period referred to in paragraph (a) or the extended period, as may be appropriate, serve a copy of the representations and a copy each of any document furnished under that paragraph, on the appellant.

6. Request for further particulars

- (1) A party to an appeal may, by serving a notice—
- (a) request the other party to furnish further particulars on any matter relevant to the appeal; and
 - (b) request the other party to make available to him for inspection any document which he considers relevant to the appeal and which is in the custody, control or possession of that party or to furnish a copy of any such document.
- (2) A request under subsection (1) may only be made—

- (a) by the Building Authority, within 14 days beginning on the date a copy of the statement is served on him under section 4(2); and
- (b) by the appellant, within 14 days beginning on the date a copy of the representations is served on him under section 5(b),

or, where appropriate, within the extended period.

- (3) A party of whom a request is made under this section shall, within 14 days beginning on the date the relevant notice is served or within the extended period, as may be appropriate, comply with such request unless the Tribunal is satisfied that the request was unreasonable or that reasonable grounds exist for not complying with it.
- (4) A party who furnishes any particulars or a copy of a document under subsection (3) shall, within the period referred to in that subsection or within the extended period, as may be appropriate, furnish a copy of the particulars or a copy of such document or, where appropriate, both, to the Secretary.

7. Notification of hearing

Not less than 21 days before the date fixed for a hearing the Secretary shall notify each party, in writing, of the date and time fixed for the hearing and the place at which it will take place.

8. Issue of witness summons

The Tribunal may, on application made in that regard by a party to an appeal, issue a summons signed by the Chairman, requiring a person to appear before the Tribunal at a hearing and give evidence or produce any document in his custody, control or possession.

9. Hearing to be in public

- (1) Subject to subsections (2) and (3), the hearing of an appeal shall be in public.
- (2) The Tribunal may, by order, direct that a hearing or part of a hearing is to be held in private, if after consulting the parties to the appeal it is satisfied that it is desirable to do so, and give directions as to the persons who may be present.
- (3) Where the Tribunal makes an order under subsection (2), it may give directions prohibiting the publication or disclosure to some or all of the parties to the appeal, or to some or all of the persons referred to in subsection (2), of evidence given before the Tribunal or any matter contained in a document lodged with or received in evidence by the Tribunal.
- (4) In exercising its powers under subsections (2) and (3), the Tribunal shall, in addition to any other matter it may take into account, take into account any views or the private interests of and any claim as to privilege by any party to the appeal.
- (5) Any claim as to privilege arising at a hearing shall be treated as a question of law.

10. Withdrawal of appeal

- (1) The appellant may withdraw his appeal or abandon any part of it by giving notice in writing to the Secretary.
- (2) An appellant who gives a notice under subsection (1) shall serve a copy thereof on the Building Authority as soon as practicable after giving it.

11. Consequences of failure by appellant to furnish statements, particulars, etc.

Where the Tribunal is satisfied that the appellant has failed to—

- (a) serve a copy of the notice of appeal on the Building Authority under section 3(3);

- (b) furnish a statement under section 4(1) or serve a copy of it under section 4(2); or
 - (c) comply with a request made under section 6(2),
- it may dismiss the appeal.

12. Record of hearing and publication of decision

- (1) At any hearing the Chairman shall record or cause to be recorded the grounds of appeal, the name of the appellant, the names of all the witnesses who have been summoned or have appeared at the hearing, the evidence given and the decision of the Tribunal and the reasons for it and any order for costs.
- (2) The decision of the Tribunal at the conclusion of a hearing, reasons for the decision and any order for costs shall be signed by the Chairman and the other members of the Tribunal and a copy of each of those shall be served on both the appellant and the Building Authority.
- (3) The Tribunal may publish, in a manner it thinks fit, any decision referred to in subsection (2), including a decision made at the conclusion of a hearing the whole or any part of which was held in private under section 9(2).

13. Extension of time limits

- (1) The Tribunal may upon application by a party extend, as regards the case to which the application relates, any time limit specified in section 4(1), 5(a) or 6(2) or (3), if it considers it appropriate to do so.
- (2) The power of the Tribunal under subsection (1) may be exercised by the Chairman.

14. Service of notices, etc.

Subject to section 3(2), for the purposes of this Regulation, the service of any notice, statement, order, summons, particulars

in writing or other document shall be effected, in the case of service—

- (a) on the Tribunal or the Secretary, by serving it or them personally on the Secretary or by sending by registered post addressed to him at his office;
- (b) on the Building Authority, by serving it or them personally or by sending by registered post addressed to the Building Authority at his office; and
- (c) on an appellant or any other person—
 - (i) who is an individual, by serving it or them personally or by sending by registered post addressed to him at his last known place of residence; or
 - (ii) who is not an individual, by sending it or them by registered post to its registered address or last known place of business.